

Title: TKDL Prior Art Defeats a Foreign Patent Application (Canadian Turmeric/Anti-Inflammatory Case)

Jurisdiction: International

Category: Case Law

Source Citation: Canadian Intellectual Property Office (CIPO), Patent Application No. CA2454171, declared "Dead" 28 September 2012, following TKDL prior-art submissions by CSIR

Plain English Summary:

This is a modern, post-TKDL example of the Neem/Turmeric pattern working exactly as designed. A patent application relating to anti-inflammatory use of turmeric (along with apple, basil, kalmegh, and licorice) was filed at Canada's patent office. CSIR's Traditional Knowledge Digital Library unit submitted prior-art evidence drawn from historical Ayurvedic and Unani texts — including Khazaain-al-Advia, Bhavaprakasa, and Rajanighantauh — showing these ingredients had been used for the same purpose for centuries. The application was killed. For an Ayurvedic company, this shows the TKDL isn't just a historical relic from the 1990s — it's an active, ongoing defensive tool still stopping patent applications today, and it works because the underlying knowledge was pre-translated and searchable rather than needing a year of ad-hoc research like the original 1997 Turmeric case did.

The Exact Legal Text:

[Patent office proceeding, not a statute — summarized holding.] TKDL, a unit of CSIR, submitted prior-art evidence in the form of references from 18th-to-20th century texts — including Khazaain-al-Advia, Muheet-e-Azam, Vaidyamanorama, Rasayoga Sagara, Rajanighantauh, Bhavaprakasa, Siddhabhesajamanimala, and Ilaaj-al-Amraaz — citing the use of turmeric, apple, basil, kalmegh, and licorice, alone or in combination, for treatment of inflammation, psoriasis, and gastritis in the Indian systems of medicine. Based on these TKDL-sourced prior-art references, the Canadian Intellectual Property Office declared the corresponding patent application (No. CA2454171) "Dead" on 28 September 2012.

Keywords/Triggers:

TKDL prior art case, CIPO patent killed, turmeric anti-inflammatory patent, CSIR modern biopiracy defense, Ayurvedic text prior art, Bhavaprakasa Rajanighantauh citation, TKDL success story